

6. *Inspection, rejection, and claims procedure.* Buyer shall inspect the Goods, at its sole cost and expense. In the event of any claims related to the Goods, including but not limited to claims for compliance with specifications, shortages, defects, nonconformity, errors and for in transit loss or damage, (hereinafter, "Claims"), Buyer shall give written notice of any Claims to Seller within five (5) days of shipment by Seller. Provided however, that notice of any claims based on moisture content must be given to Seller within 48 HOURS AFTER RECEIPT OF SHIPMENT BY BUYER. Together with written notice, Buyer shall also provide all documents supporting any Claims and a summary of all material facts upon which any Claims are made. FAILURE TO GIVE TIMELY RECEIVE NOTICE OF ANY CLAIMS IN WRITING SHALL CONSTITUTE IRREVOCABLE AND UNQUALIFIED ACCEPTANCE OF THE GOODS BY BUYER AND SHALL CONSTITUTE A WAIVER BY BUYER OF ALL CLAIMS WITH RESPECT THERETO. Provided that Buyer delivers timely written notice of Claims, Seller may, in its sole discretion, either replace the portion of the Goods found by Seller to be nonconforming on the same terms applicable to the initial orders, ship additional Goods to remedy any shortage determined by Seller, repair any defects in the Goods confirmed by Seller at Buyer's expense, or refund to Buyer the portion of the purchase price actually received by Seller for the affected portion of the Goods.

7. *Limitation of Liability.* SELLER'S LIABILITY SHALL BE LIMITED TO THE COST OF REPLACING DEFECTIVE AND/OR NONCONFORMING GOODS AT THE POINT OF DELIVERY AS SPECIFIED IN SELLER'S ORDER CONFIRMATION WITHIN A REASONABLE PERIOD OF TIME FOLLOWING PROPER AND TIMELY REJECTION BY BUYER. IN NO EVENT SHALL SELLER BE LIABLE TO BUYER OR ANY THIRD PARTY FOR ANY LOSS OF USE, REVENUE OR PROFIT OR LOSS OF DATA OR DIMINUTION IN VALUE, OR FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL, DELAY, EXEMPLARY, OR PUNITIVE DAMAGES WHETHER ARISING OUT OF BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, REGARDLESS OF WHETHER SUCH DAMAGES WERE FORESEEABLE AND WHETHER OR NOT SELLER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, AND NOTWITHSTANDING THE FAILURE OF ANY AGREED OR OTHER REMEDY OF ITS ESSENTIAL PURPOSE. IN NO EVENT SHALL SELLER'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER ARISING OUT OF OR RELATED TO BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, EXCEED THE TOTAL OF THE AMOUNTS PAID TO SELLER FOR THE GOODS SOLD HEREUNDER. Except as may be provided in a written limited warranty issued by Seller, no litigation or arbitration by Buyer concerning the sale shall be commenced later than one year after date of shipment.

8. *Indemnification.* Buyer assumes and agrees to indemnify and save Seller harmless from any and all liability, including but not limited to third party claims, which may arise from the use, sale, distribution, remanufacturing, or disposal by Buyer or others of the goods sold hereunder, whether used alone or in combination with other materials, whether such liability is based on contract, tort, strict liability or other theory except the extent such liability is caused solely by Seller's gross negligence or willful misconduct.

9. *Assumption of Liability.* Buyer has selected the Goods as suitable for their use and assumes all risks and liabilities resulting from the use, sale, distribution, remanufacture, or disposal of the Goods. Seller neither assumes nor authorizes any person to assume for Seller any liability in connection with the sale, use, or disposal of the Goods.

10. *Title; Risk of Loss.* Unless expressly agreed by Seller, title and risk of loss shall transfer to Buyer upon delivery of Goods to any carrier at Seller's designated location or other shipping point ("Point of Delivery") irrespective of whether Seller has sold the Goods "freight prepaid" and notwithstanding any right of Buyer to cancel or return Goods.

11. *Force Majeure.* Seller is not be liable or responsible to Buyer or be deemed to have defaulted, for any failure or delay in fulfilling or performing its obligations under Order Confirmation, when and to the extent such failure or delay is caused by or results from acts beyond the Seller's control, including without limitation, the following force majeure events ("Force Majeure Event(s)"): (a) acts of God; (b) flood, fire, earthquake, pandemic, epidemic, or explosion; (c) war, invasion, hostilities (whether war is declared or not), piracy, terrorist threats or acts, riot or other civil unrest; (d) government order, law, or actions; (e) embargoes or blockades in effect on or after the date of this Agreement; (f) national or regional emergency; (g) strikes, labor stoppages or slowdowns, or other industrial disturbances; and (h) telecommunication breakdowns, power outages or shortages, lack of warehouse or storage space, inadequate transportation services, or inability or delay in obtaining supplies of adequate or suitable materials; and (i) other similar events beyond the reasonable control of Seller. In the event of force majeure, both Buyer and Seller will attempt to overcome it and keep each other informed of progress. If a Force Majeure Event continues for 30 days, Buyer and Seller will attempt to negotiate reasonable accommodation for performance. Should the Force Majeure Event continue for 30 days or more, Seller may terminate the Order. Seller shall not be liable for any damages or penalties whatsoever, whether direct, indirect, special, liquidated, delay, consequential, contingent, exemplary, punitive or otherwise, resulting from Seller's failure to perform or delay in performing as a result of a Force Majeure Event.

12. *Buyer Compliance.* The Buyer agrees to comply with all applicable laws, regulations and ordinances. Buyer shall maintain in effect all licenses, permits, authorizations, and permits that it needs to carry out its obligations under this Agreement. Buyer shall comply with the following: (a) Executive Order 11246 as amended and all regulations promulgated pursuant to that Executive Order including